

Public Security Act, 1989

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Public Security Act, 2046

Royal Seal and Publication Date

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Amending Acts

1. Public Security (First Amendment) Act, 2047 2047.12.29
2. Public Security (Second Amendment) Act, 2048 2048.7.28
3. Some Nepal Acts Amendment Act, 2048 2049.1.8

Ratification and Publication Date

4. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.7
5. Some Nepal Acts Amendment Act, 2072 2072.11.13
6. Public Security (Third Amendment) Act, 2075 2075.6.2
7. Some Nepal Acts Amendment Act to Make Conformable to the Constitution of Nepal, 2075 2075.11.19

Act No. 5 of the year 2046

An Act Made to Provide for Maintaining Public Security

Preamble: Amended by the Second Amendment. Whereas, it is desirable to make timely provisions for placing any person under preventive detention or imposing a restriction on movement for the purpose of maintaining the sovereignty Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. of Nepal, Added by the Third Amendment. territorial integrity or public peace and order and the interest of the general public or the good relationship among various castes, ethnic groups or communities,

Therefore, His Majesty King Birendra Bir Bikram Shah Dev, with the advice and consent of the National Panchayat, has enacted this Act. 1. Short Title and Commencement:

1.1 This Act may be cited as the "Public Security Act, 2046."

1.2 This Act shall come into force immediately. 2. Definitions:

2.1 Unless the subject or context otherwise requires, in this Act,-

2.1.1 "Detention order" means an order under Amended by the Second Amendment. subsection 3.1. 2.1.2

"Restriction order" means an order under Amended by the Second Amendment. subsection 3.2 Deleted by the Some Nepal Acts Amendment Act, 2048.. 2.1.3 "Local authority" means the Chief District Officer, and that word also includes an officer acting for and on behalf of him in his absence. 3. Power to Issue Order:

Amended by the Second Amendment. 3.1 If there are reasonable and sufficient grounds to prevent any person from doing any act or thing that may immediately cause disruption to the sovereignty Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. of Nepal, Added by the Third

Amendment.territorial integrity or public peace and order, the local authority may issue an order to detain such person at a specified place for a specified period. Added by the Third Amendment.3.1A. If any person is detained pursuant to subsection 3.1, the local authority shall, within twenty-four hours of such detention, inform a family member or close relative of such person about the situation of that person. Provided that this provision shall not apply in the case of a citizen of an enemy state.

3.2 If there are reasonable and sufficient grounds to prevent any person from doing any act or thing that may cause disruption to the interest of the general public or the good relationship among various castes, ethnic groups or communities, the local authority may issue any order as follows in the name of such person for imposing a restriction on his movement:- 3.2.1 Not to reside in any place of Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066., 3.2.2 Not to enter any place of Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066., 3.2.3 To reside only in any place of Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.. Added by the First Amendment.3.3 The Government of Nepal, Ministry of Home Affairs, may issue an order prohibiting any person from going outside Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. without the approval of the Government of Nepal, in order to prevent such person from doing any act or thing that may adversely affect the security, peace and order of Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066., friendly relations with friendly states, or the good relationship among various classes or sections of the people. 4. Procedure Relating to Order: Amended by the Second Amendment.4.1 While issuing any order under subsection 3.1 or 3.2, the local authority shall mention the reason and ground for issuing such order and deliver such order to the concerned person. The local authority shall also give information thereof, along with a copy of such order, to Amended by the Some Nepal Acts Amendment Act to Make Conformable to the Constitution of Nepal, 2075.the Government of Nepal, Ministry of Home Affairs and the Ministry looking after internal affairs of the Provincial Government. 4.2 If an order is made to detain any person, the local authority shall, within twenty-four hours, send a notice along with a copy of the order to the District Court of the district in which the order of detention is made. Added by the Second Amendment.4.3 If the reason for issuing an order under subsection 3.1 or 3.2 ceases to exist, the local authority shall revoke such order within twenty-four hours. 5. Period of Validity of Detention Order: 5.1 Amended by the Second Amendment.An order issued to detain any person under subsection 3.1 shall remain in force for ninety days from the date of issue, unless revoked earlier.

Amended by the First Amendment.5.2 Notwithstanding anything contained in subsection 5.1, in the following circumstances, the period of the detention order shall be as follows:- 5.2.1 If it appears necessary to detain any person detained under this Act for a period exceeding ninety days, the local authority shall send a written communication, along with the reason and ground thereof, to the Government of Nepal, Ministry of Home Affairs. If the Government of Nepal, Ministry of Home Affairs, deems the suggestion of the local authority reasonable and approves it, such order shall remain in force for up to six months from the date of issue. 5.2.2 If it appears necessary to detain any person detained under this Act for a period exceeding six months, the Government of Nepal, Ministry of Home Affairs, shall seek the opinion of the Advisory Committee under Section 7. If the Advisory Committee opines that it is appropriate to extend the period of detention, the period of the detention order shall remain in force for up to twelve months from the date of issue of such order. 6. Period of Validity of Restriction Order: 6.1 A restriction order issued in relation to any person shall remain in force for thirty days from the date of issue, unless revoked earlier. Amended by the First Amendment.6.2 Notwithstanding anything contained in subsection 6.1, if it appears necessary to keep a restriction order issued under this Act in force for a period exceeding thirty days, the local authority shall send a written

communication, along with the reason and ground thereof, to the Government of Nepal, Ministry of Home Affairs. If the Government of Nepal, Ministry of Home Affairs, deems the suggestion of the local authority reasonable and approves it, such order shall remain in force for up to ninety days from the date of issue. 6A. Deleted by the Some Nepal Acts Amendment Act, 2048. 7. Constitution of Advisory Committee: For the purposes of this Act, the Government of Nepal may, in consultation with the Chief Justice, constitute an Advisory Committee with a sitting judge of the Supreme Court as the chairperson and two other sitting or retired judges of the same Court as members. 8.

Procedure of Advisory Committee: 8.1 If it appears that it is necessary to keep the period of the detention order of any detainee in force for a period exceeding Amended by the First Amendment.six months, the Government of Nepal, Ministry of Home Affairs, shall submit to the Advisory Committee a report containing the reason and ground thereof, along with any suggestion given by the local authority in this connection and any complaint submitted to the Government of Nepal on behalf of the detainee. 8.2 After considering the report and other documents received under subsection 8.1, and also the reply or explanation of the detainee if any interrogation or explanation was sought from him under subsection 8.3, the Advisory Committee shall send an opinion to the Government of Nepal as to whether it is necessary to extend the period of detention or not. 8.3 The Advisory Committee may, if it deems necessary, interrogate or seek an explanation from the detainee on any matter. 9. Power to Revoke Order: 9.1 The local authority may, at any time, revoke any order issued by him before the expiry of the period specified in such order. 9.2 The Government of Nepal may, at any time, revoke a detention order Amended by the Some Nepal Acts Amendment Act, 2048. and a restriction order. 10. Penalty: 10.1 Amended by the Second Amendment.A person who contravenes an order under subsection 3.2 may be punished by the local authority with imprisonment for up to Deleted by the Some Nepal Acts Amendment Act, 2048.six months or a fine of up to one thousand rupees. 10.2 An appeal against an order of punishment under subsection 10.1 shall lie to Amended by the Some Nepal Acts Amendment Act, 2072.the District Court. 10.3 In the appeal filed under subsection 10.2, Amended by the Some Nepal Acts Amendment Act, 2072.the District Court shall decide the appeal remaining limited to the question of whether there has been a contravention of the order or not. 11. No Question to be Raised in any Court: Amended by the First Amendment.No question shall be raised in any court against an order issued under this Act. 12.

Procedure to be Followed at the Time of Release: When releasing any person who has been detained, it shall be done in the presence of the judge of the concerned District Court or, in his absence, Amended by the Third Amendment.the court registrar and, as far as possible, a family member, close relative of the detainee or a person desired by the detainee. Added by the Second Amendment.12A. Entitlement to Compensation for Malicious Detention: 12A.1 Notwithstanding anything contained in Section 11, if a person detained under this Act feels that he has been detained contrary to this Act or maliciously, he may, while in detention or within thirty-five days of being released from detention, file a complaint in the District Court for compensation to be recovered from the local authority who issued such detention order. 12A.2 If the contents of the complaint made under subsection 12A.1 are proven, the District Court shall, having regard to the period of detention, the age of the detainee, his social prestige, the economic loss suffered by him from the detention, etc., decide to cause reasonable compensation to be paid to the complainant by the Government of Nepal. 12A.3 In relation to the complaint filed under subsection 12A.1, the local authority may request the office of the government attorney to defend him, and if so requested, the government attorney shall defend him in court. 13. Departmental Action: If an order issued by a local authority under this Act is determined to have been issued maliciously Added by the Third Amendment.or if information about the situation of a detainee is not given to his family member or close relative as per subsection 3.1A of Section 3, such authority shall be liable

to departmental action and punishment. 14. Power to Make Rules: The Government of Nepal may make rules to implement the objectives of this Act. 15. Repeal and Saving: 15.1 The Public Security Act, 2018 is hereby repealed. 15.2 The provisions of this Act shall apply in relation to any order issued under the Public Security Act, 2018.